

Analysis

Mail service was completed at an address for the Defendant where he was personally served with notice of the Summons and Complaint.

Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$3,571.68, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$142.

Costs are \$583.61.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$4,013,29.

Plaintiff to file order on Motion, as well as submit Judgment.

11. 9:00 AM CASE NUMBER: L26-00081
CASE NAME: CROWN ASSET MANAGEMENT LLC VS. DONPREYEL MARTIN
***HEARING ON MOTION IN RE: STAY OF PROCEEDINGS PENDING ARBITRATION**
FILED BY:

TENTATIVE RULING:

Defendant filed a Motion, on 2/24/26, to stay proceedings pending arbitration. The Motion was originally scheduled for hearing on 5/5/26, yet on that day, the court found that Defendant had not provided notice of the Motion or hearing to Plaintiff, and continued the Motion to 7/28/26.

As of this writing, there is still no evidence that Defendant has provided any notice to Plaintiff.

Disposition

This Motion will be dropped.

12. 9:00 AM CASE NUMBER: L26-01518
CASE NAME: BANK OF AMERICA, N.A. VS. AMY NILSON

*HEARING ON MOTION IN RE:

FILED BY: NILSON, AMY

TENTATIVE RULING:

Background

Defendant has filed a Motion to dismiss the Complaint. Plaintiff filed a Response.

Though the sole cause of action in the Complaint is for breach of contract, the matter is a collections case in which Plaintiff has alleged that Defendant owes Plaintiff money stemming from a credit card account. Specifically, Plaintiff alleges the parties agreed on an extension of credit; that Defendant agreed to repay the amount according to particular terms; and that Defendant failed to abide by those terms when she failed to make payments.

Defendant filed an Answer, providing a general denial to the allegations.

Defendant bases the Motion on evidence suggesting that the debt no longer exists. She contends that the debt was “charged off,” and attaches exhibits purporting to be copies of credit reports in support of this claim.

Plaintiff, in their Response, notes that the phrase, “charge off” has nothing to do with the existence of the credit debt at issue.

Analysis

The vehicle for dismissal that Defendant intends to use is unclear, but she writes, in her Motion, that is made “on the grounds that the Complaint fails to state a claim upon which relief can be granted.” (Motion, P.2, lines 4-5.) The only sensible way to construe Defendant’s Motion is that she is challenging the sufficiency of the allegations in the Complaint. Thus, this court will treat Defendant’s request as though she has filed the equivalent of a Demurrer.

The limited role of the demurrer, however, is to test the legal sufficiency of the allegations in a complaint. *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388. It raises issues of law, not fact, regarding the form or content of the opposing party’s pleading.

Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. *Id.* For purposes of demurrer, all facts pleaded in a complaint are assumed to be true, but the court does not assume the truth of conclusions of law. *Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962,

967.

A defendant may raise the issue of standing in a Demurrer when the complaint does not state facts sufficient to constitute a cause of action by the particular plaintiff. *CCP 430.10(b) and (e)*; *CCP 430.30(a)*; and *Mercury Interactive Corp. v. Klein* (2007) 158 CA4th 60, 103-104.

But in the instant matter, the Complaint quite clearly states facts that are sufficient to support the claim that Defendant breached the terms of a contract. And the court, for the purposes of a demurrer, assumes these allegations to be true. That Defendant believes that there does not exist any outstanding balance appears to be an evidentiary issue. Disputes over evidence, however, are not appropriate for a demurrer.

Disposition

Defendant's Demurrer is overruled.

Plaintiff to file Order, and to serve copies of filed Order on Defendant.

13. 9:00 AM CASE NUMBER: L26-01968
CASE NAME: NEDA VALIASHRAFI VS. HUDSON INSURANCE COMPANY
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: ATOZ PLUMBING HEATING SERVICES, INC.

TENTATIVE RULING:

Defendants Azizi and A to Z Plumbing filed a Demurrer to the Complaint.

Plaintiff filed a Response, on 5/11/26, in which they simply provided notice of a motion to seek leave to file an amended complaint.

Background

The Complaint in the instant matter ("Complaint"), filed on 3/19/26, alleges one cause of action against Defendant Hudson Insurance for recovery on a contractor licensure bond. The cause stems from plumbing work done by Defendant Azizi for Plaintiff. Plaintiff alleges that Azizi ran a plumbing company, A to Z Plumbing (also a named defendant, "A to Z"), performed plumbing work for Plaintiff in a negligent and fraudulent manner, caused damage to Plaintiff's property, was insured by Hudson, and Plaintiff seeks redress in the form of the insurance bond.

The only reference to particular work that was done in a negligent manner is the allegation that Azizi represented that he could obtain a permit for the work after the work was completed. Plaintiff alleges that this was not the case, that the permit had to be